BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **FEDERAL EXPRESS CORPORATION; and DOES 1 through 10, inclusive,** Defendants.	Case No. 2:26-cv-02881-DAD-SCR **ATTACHMENT A TO SUBPOENA TO PRODUCE DOCUMENTS (FIRST ADVANTAGE BACKGROUND SERVICES CORP.)** (Fed. R. Civ. P. 45) Attachment B: Declaration of Custodian of Records Magistrate Judge: Hon. Sean C. Riordan District Judge: Hon. Dale A. Drozd

ATTACHMENT A TO SUBPOENA TO PRODUCE DOCUMENTS

FIRST ADVANTAGE BACKGROUND SERVICES CORP.

DEFINITIONS

1. "You" and "Your" mean First Advantage Background Services Corp. and its affiliates that prepared or furnished background reports to FedEx.

2. "Plaintiff" means Brendan Ngehsi Newanforbi, including under any variation of that name (for example, Brendan Ngwa Nforbi, Brendan Ngwanforbi, Brendan Ngehsi Ngwa-Nforbi, or Ngwa-Nforbi).

3. "Document" has the broadest meaning allowed by Fed. R. Civ. P. 34(a)(1)(A) and includes electronically stored information.

CONSUMER IDENTIFICATION

To help You locate the records, the consumer and screening are: Brendan Ngehsi Newanforbi (also Brendan Ngwa Nforbi, Brendan Ngwanforbi, Brendan Ngehsi Ngwa-Nforbi); email bnn.cdl@gmail.com; client FEDEX GROUND HR / Federal Express Corporation; application on or about January 8, 2025; pre-adverse action notice on or about March 10, 2025; final adverse action on or about March 19, 2025.

Plaintiff's date of birth and other identifiers are omitted because this attachment is served on the parties. Plaintiff will provide them to First Advantage directly through a secure channel on request. No records concerning any other consumer are requested.

INSTRUCTIONS

1. Produce responsive documents in Your possession, custody, or control, as kept in the ordinary course of business. Produce electronically stored information as searchable PDF, and spreadsheets, databases, structured exports, and audit logs in reasonably usable native form, preserving metadata showing creation, modification, access, transmission, and status-change dates.

2. **No appearance is required.** The place of compliance stated on the subpoena is Your office at 1 Concourse Parkway NE, Suite 200, Atlanta, Georgia 30328. You may instead comply by mailing or securely transmitting true copies of the documents, with the completed Declaration of Custodian of Records (Attachment B), to: Brendan Ngehsi Newanforbi, 1455 Cat Tail

Drive, Stockton, California 95204; bnn.cdl@gmail.com, on or before the date stated on the subpoena.

2A. If any responsive record no longer exists, produce any retention, deletion, purge, or destruction record sufficient to identify what was removed and when.

3. Plaintiff is the consumer to whom these records relate. Plaintiff consents to Your disclosure of his own consumer file and report records to him for purposes of this action.

4. If You withhold any document on a claim of privilege or protection, provide the information required by Fed. R. Civ. P. 45(e)(2)(A).

5. Plaintiff will reimburse the reasonable copying costs of production on request. Please contact Plaintiff at bnn.cdl@gmail.com with any question about the scope or format of production before the compliance date.

DOCUMENTS TO BE PRODUCED

REQUEST NO. 1:

Each consumer report and investigative consumer report concerning Plaintiff that You prepared for, or furnished to, Federal Express Corporation, FedEx Ground Package System, Inc., or any other FedEx entity (together, "FedEx") at any time from January 1, 2019 through the present, in every version and in the form furnished, including all component results and updates.

REQUEST NO. 2:

For each report in Request No. 1, all records of each criminal-history and sex offender registry search performed, including: the vendor, database, or website queried (for example,

the National Sex Offender Public Website, the California Department of Justice Megan's Law website, or another source); the jurisdiction, query, and search terms used; the retrieval method; the raw result returned; the "source of record" information; the date and time retrieved; and the chain of transmission from the source to FedEx.

REQUEST NO. 3:

Order records for each report in Request No. 1, including the package ordered, each component, the requesting FedEx user or account, and the dates ordered and completed.

REQUEST NO. 4:

All records of any adjudication, scoring, or eligibility determination applied to each report in Request No. 1, including the "client criteria" or matrix applied and the resulting score.

REQUEST NO. 5:

All communications with FedEx concerning Plaintiff, including portal messages, emails, adjudication notes, and status updates.

REQUEST NO. 6:

Each pre-adverse action and adverse-action notice sent to Plaintiff on behalf of FedEx, with enclosures, and records showing when each was sent and when Plaintiff accessed any portal link.

REQUEST NO. 7:

All disclosure and authorization forms concerning Plaintiff that You received or maintain in connection with any FedEx order, and records of any request by Plaintiff for a copy of a report.

REQUEST NO. 8:

Documents sufficient to show, for the period January 1, 2024 through March 31, 2025, how the search labeled "National Sex Offender Registry" or "National Sex Offender Registry Search - Department of Justice Web Site" retrieves records of California registrants, including whether it queries the National Sex Offender Public Website, the California Megan's Law website, or a database compiled from either.

REQUEST NO. 9:

Documents sufficient to show the terms of any agreement between You and FedEx in effect during 2024 or 2025 that govern sex offender registry searches for California applicants or compliance with California Penal Code section 290.46.

REQUEST NO. 10:

Audit logs showing when each report in Request No. 1 was ordered, searched, completed, changed, delivered, displayed, accessed, opened, downloaded, or transmitted, including the user or account identifier of each FedEx or First Advantage user involved.

REQUEST NO. 11:

All records of any manual review, quality-control review, identity-matching decision, suppression, dispute, reinvestigation, correction, or update concerning any report in Request No. 1.

REQUEST NO. 12:

Every warning, disclaimer, compliance notice, instruction, or term You supplied to FedEx, with any report in Request No. 1 or under Your service agreement, concerning permissible or prohibited employment use of criminal-history or sex offender registry information, including California Penal Code section 290.46.

REQUEST NO. 13:

Documents sufficient to identify each person or organizational unit at First Advantage that collected, reviewed, approved, transmitted, or maintained any report in Request No. 1.

ATTACHMENT B

DECLARATION OF CUSTODIAN OF RECORDS

(Fed. R. Evid. 803(6), 902(11), 902(13))

Newanforbi v. Federal Express Corporation, E.D. Cal. No. 2:26-cv-02881-DAD-SCR

I, _____, declare:

1. I am employed by First Advantage Background Services Corp. as _____, and I am a custodian of records, or am otherwise qualified by my position, to make this declaration.

2. The records produced with this declaration, consisting of _____ pages (identified as _____), are true copies of records that were (a) made at or near the time of the acts, events, or conditions they record, by, or from information transmitted by, someone with knowledge; (b) kept in the course of a regularly conducted activity of First Advantage; and (c) made as a regular practice of that activity. To the extent the records are electronic, they were generated by an electronic process or system that produces an accurate result, and any copies were made by a process of digital identification that accurately reproduces the originals.

3. [ ] A diligent search was made, and no records responsive to Request No(s). _____ were found.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on _____, 20___, at _____.

_____

Signature

_____

Printed name and title